



POLICE DEPARTMENT

March 27, 2015

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Carlos Pacheco
Tax Registry No. 932196
52 Precinct
Disciplinary Case No. 2012-8334

The above-named member of the Department appeared before me on June 30 and September 25, 2014, charged with the following:

1. Said Police Officer Carlos Pacheco, assigned to the 52nd Precinct, on or about June 24, 2011, within the confines of the 52nd Precinct, did fail and neglect to safeguard his Department radio in that unauthorized radio transmissions were made from the radio assigned to said officer.

P.G. 203-06, Page 2, Paragraph 20 – PERFORMANCE ON DUTY
PROHIBITED CONTACT

2. Said Police Officer Carlos Pacheco, assigned as indicated in Specification #1, on or about June 24, 2011, within the confines of the 52nd Precinct, did fail and neglect to maintain said officer's Activity Log (PD 112-145).

P.G. 212-08, Page 1, Paragraph 1 – ACTIVITY LOGS-COMMAND
OPERATIONS

The Department was represented by Beth Douglas, Esq., Department Advocate's Office, and Respondent was represented by Michael Martinez, Esq.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Guilty of Specification No. 1 and Not Guilty of Specification No. 2.

INTRODUCTION

This case involves an unauthorized radio transmission that was attributed to Respondent's radio. On June 24, 2011, at about 12:52 p.m. a burglary was occurring in the confines of the 50 Precinct. The radio dispatcher announced the job over the radio. The commanding officer of the 52 precinct, Deputy Inspector Joseph Dowling, was actively involved with this job because the description of the suspects matched the description of suspects also wanted in the confines of the 52 precinct. As a result, Dowling requested that his officers from the 52 precinct assist with the job in the neighboring precinct. Other members of the service were also engaged in communications with the radio dispatcher and were also responding. During these communications, a series of unauthorized transmissions were made. One such communication was attributed to Respondent's radio. The Department seemingly does not contend that Respondent actually made this unauthorized transmission, but rather that he failed to safeguard his radio resulting in the unauthorized transmission being made from it. In addition, Respondent is charged with failing to maintain his Activity Log during this period.

FINDINGS AND ANALYSIS

Unauthorized Transmission Charge

Respondent stands charged with failing to safeguard his Department radio in that unauthorized transmissions were made from it. Mushiya Kalambay's (radio repair mechanic) testimony, as well as Respondent's testimony, in part, established that Respondent was assigned the radio that was attributed to the unauthorized transmission.

In dispute is whether Respondent was actually in the 52 Precinct at the time the transmission was made from Respondent's radio. This Court credits Respondent's testimony that he was actually in the precinct at the time the transmission was made.

Respondent contends that at the time the transmission was made, he was inside of the 52 Precinct on "stand by." He was waiting to be reassigned as his partner, Police Officer Gasperi, had to report to traffic court. Respondent was assigned to the School Unit on this day with his partner. During the time he was on stand by, Respondent waited in the police officer lounge located on the second floor of the precinct. Only police officers and detectives are allowed to use the lounge area. Civilian employees and the general public are not allowed in. While waiting in the lounge, he removed his gun belt and hung it on a hook located at the entrance of the men's room. (See Respondent's Exhibit (RX) B. He also used the men's room.

Respondent testified that he routinely uses the lounge area about two or three times a week during his meal break or any other break during his tour.

Additionally, when using the men's room in the lounge, he removes his gun belt and hangs it on one of the many hooks just outside of the men's room. He removes his gun belt because the bathroom stalls are too small, and for other obvious reasons. He explained this is done on a regular basis by many other police officers who use the lounge area. He said he did not observe anyone using his radio, but speculated that another officer could have used his (Respondent's) radio to "goof" off.

The Assistant Department Advocate (Advocate) argues that Respondent was not in the precinct at the time of the unauthorized transmission. The Advocate provides two reasons for this argument. First, that Respondent did not document his meal time or location in his Activity Log (Department's Exhibit [DX] 7), and second, that Respondent is not in the precinct's interrupted patrol log.

Respondent concedes that he did not make an entry in his Activity Log between 12:33 p.m. and 2:00 p.m. Respondent did not have any specific recollection as to exactly what he did during this time frame but testified that after conferral with his partner, this is when his partner, Gasperi, went to traffic court. In his Activity Log, Respondent indicates that he is assigned to the school unit. However, Respondent's actual entries in his log are more consistent with a different assignment. Although Respondent did not recall the events of that day, he surmised that based on his entries in the log, he was assigned to a House of Worship Auto. This assignment would involve conducting vertical patrols in different houses of worship in the confines of the 52 Precinct. Based on these log entries, Gilliard, the Assistant Integrity Control Officer also believed that Respondent was not assigned to a high school. He reviewed Respondent's Activity Log and noted that

Respondent was doing vertical patrols at various locations. Respondent may not have noted his meal time in his Activity Log because he may not have been granted a meal hour on that date. Gilliard acknowledged that if Respondent were assigned to do vertical patrols, he would not do them alone. Thus Respondent's defense that he was in the station house awaiting an assignment is accepted by the Court.

With respect to the Interrupted Patrol Log, Respondent said that the log is seldom used unless officers are on steady patrol and taking their meal breaks in the precinct, but it is not used for officers who just come in "to wait for somebody, it's never documented." Normally in a situation like this where his partner has to go to traffic court, Respondent explained that he would return to the precinct and would be instructed to wait "upstairs" until called. Again, Gilliard agreed that in his 19 years working for the Department, there are many instances when members of the service return to the station house but the supervisor on the desk fails to log them in the Interrupted Patrol Log. He explained that the Interrupted Patrol Log, "It's going to be as reliable as the person that's on the desk."

Notwithstanding, even though Respondent was found to be in the station house and possibly hung his gun belt on a hook used by many police officers, his radio was still under his control and he has a duty to safeguard it. He must ensure that no unauthorized transmissions are made. His failure to do so makes him responsible for all communications made, whether he made them or not, including those that violate Patrol Guide § 203-06: which requires members of the service while on duty to not make unauthorized radio transmissions.

Accordingly, Respondent is found Guilty.

Failure to Maintain Activity Log Charge

Respondent stands charged with failing to maintain his Activity Log on June 24, 2011. Respondent testified that he is diligent in noting in his Activity Log when he takes police action, but in instances when he returns to the command, he does not necessarily note that time. A review of Respondent's Activity Log indicates that he made copious entries on June 24, 2011. He noted the day, the date, his tour, his assignment to the school unit and apparently every police action he took from 8:00 a.m. until his tour ended at 4:35 p.m. It appears that at some point between 9:00 a.m. and 10:49 a.m., Respondent was transferred from the school unit to doing vertical patrols because 1) Respondent never noted when he arrived at the school as he noted on other dates in his Activity Log when he was assigned to the school unit (See DX 7); and 2) Respondent notes every location he visited with street numbers and names between 10:49 a.m. and 12:33 p.m. Although there are no entries between 12:33 p.m. and 2:00 p.m., at 2:00 p.m., Respondent's entries resume listing every street number and name he visited from 2:00 p.m. until his tour ended at 4:35 p.m. While Respondent's Activity Log does not list every action he took on June 24, 2011, such as responding to the station house, he does note every police action he took. Ironically, the Roll Call (DX 5) has Respondent assigned to Walton High School, yet Respondent spent most of his tour doing vertical patrols and the roll call does not reflect that change in assignment, nor were any other adjusted roll calls offered into evidence.

Patrol Guide § 212-08 requires uniformed members of the service to record their day, date and tour, assignment and chronologically every assignment, task performed, absence from sector and any other pertinent information to the assignment. The Court finds Respondent followed the spirit of the Patrol Guide with respect to his Activity Log entries for the date in question. He noted every police action he took on that date. It is also noted that when Respondent returned to his command to await a partner, no entries were made in the Interrupted Patrol Log to note that Respondent was present in the Command (See DX 6).

Accordingly, Respondent is found Not Guilty.

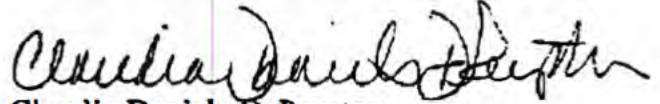
PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on July 1, 2003. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum. Respondent is found Guilty of failing to safeguard his radio against unauthorized transmissions. The Assistant Department Advocate asked for a penalty of ten vacation days. However, Respondent was found Guilty of only one of the two Specifications he was charged with.

It must be noted that Respondent was found Guilty of failing to safeguard his radio, but it was not lost, only that an unauthorized transmission was made from it.

That, coupled with Respondent's service record, it is recommended that Respondent forfeit five vacation days.

Respectfully submitted,



Claudia Daniels-DePeyster
Assistant Deputy Commissioner Trials

APPROVED

JUN 18 2015

WILLIAM J. BRATTON
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER CARLOS PACHECO
TAX REGISTRY NO. 932196
DISCIPLINARY CASE NO. 2012-8334

In 2012, 2013 and 2014, Respondent received an overall rating of 4.0 “Highly Competent” on his annual performance evaluations. Respondent has received one Meritorious Police Duty medal in his career to date.

[REDACTED]

Respondent has no prior formal disciplinary record.

For your consideration.

Claudia Daniels-DePeyster
Assistant Deputy Commissioner-Trials